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Une Fois Encore (January 6, 1907)

UNE FOIS ENCORE

ENCYCLICAL OF POPE PIUS X ON THE SEPARATION OF CHURCH AND STATE TO OUR VENERABLE BRETHREN, THE CARDINALS, ARCHBISHOPS, AND BISHOPS OF FRANCE AND TO THE FRENCH CLERGY AND PEOPLE

Venerable Brethren and Beloved Sons, Health and Apostolic Benediction.

Once again the serious events which have been precipitated in your noble country compel Us to write to the Church of France to sustain her in her trials, and to comfort her in her sorrow. When the children are suffering the heart of the Father ought more than ever to go out to them. And so, now that We see you suffer, from the depths of our fatherly heart floods of tenderness break forth more copiously than ever, and flow to you with the greater comfort and sweetness.

2. These sufferings, Venerable Brethren and beloved sons, now find a sorrowful echo throughout the whole Catholic Church; but We feel them more deeply still and We sympathize with a pity which grows with your trials and seems to increase day by day.

3. But with these cruel sorrows the Master has, it is true, mingled a consolation than which none can be dearer to our heart. It springs from your unshakable attachment to the Church, from your unfailing fidelity to this Apostolic See, and from the firm and deeply founded unity that reigns amongst you. On this fidelity and union We confidently reckoned from the first, for we were too well aware of the nobleness and generosity of the French heart to have any fear that on the field of battle disunion would find its way into your ranks. Equally great is the joy that We feel at the magnificent spectacle you are now giving to the world; and with our high praise of you before the whole Church, We give thanks from the depths of Our heart to the Father of mercies, the Author of all good.

4. Recourse to God, so infinitely good, is all the more necessary because, far from abating, the struggle grows fiercer and expands unceasingly. It is no longer only the Christian faith that they would uproot at all costs from the hearts of the people; it is any belief which lifting man above the horizon of this world would supernaturally bring back his wearied eyes to heaven. Illusion on the subject is no longer possible. War has been declared against everything supernatural, because behind the supernatural stands God, and because it is God that they want to tear out of the mind and heart of man.

5. The war will be bitter and without respite on the part of those who wage it. That as it goes on harder trials than those which you have hitherto known await you is possible and even probable. Common prudence calls on each of you to prepare for them. And this you will do simply, valiantly, and full of confidence, sure that however fiercely the fight may rage, victory will in the end remain in your hands.

6. The pledge of this victory is your union first of all amongst yourselves, and secondly with this Apostolic See. This twofold union will make you invincible, and against it all efforts will break.

7. Our enemies have on this been under no misapprehensions. From the outset, and with the greatest clearness of vision, they determined on their objective; first to separate you from Us and the Chair of Peter, and then to sow disorder among you. From then till now they have made no change in their tactics; they have pursued their end without rest and by every means; some with comprehensive and catching formulas; others with the most brutal cynicism. Specious promises, dishonorable bribes offered to schism, threats and violence, all these have been brought into play and employed. But your clear-sighted fidelity has wrecked all these attempts. There upon, thinking that the best way to separate you from Us was to shatter your confidence in the Apostolic See, they have not hesitated, from the tribune and in the press, to throw discredit upon Our acts by misrepresenting and sometimes even by calumniating Our intentions.

8. The Church, they said, is seeking to arouse religious war in France, and is summoning to her aid the violent persecution which has been the object of her prayers. What a strange accusation! Founded by Him who came to bring peace to the world and to reconcile man with God, a Messenger of peace upon earth, the Church could only seek religious war by repudiating her high mission and belying it before the eyes of all. To this mission of patient sweetness and love she rests and will remain always faithful. Besides, the whole world now knows that if peace of conscience is broken in France, that is not the work of the Church but of her enemies. Fair-minded men, even though not of our faith, recognize that if there is a struggle on the question of religion in your beloved country, it is not because the Church was the first to unfurl the flag, but because war was declared against her. During the last twenty-five years she has had to undergo this warfare. That is the truth and the proof of it is seen in the declarations made and repeated over and over again in the Press, at meetings, at Masonic congresses, and even in Parliament, as well as in the attacks which have been progressively and systematically directed against her. These facts are undeniable, and no argument can ever make away with them. The Church then does not wish for war, and religious war least of all. To affirm the contrary is an outrageous calumny.

9. Nor has she any desire for violent persecution. She knows what persecution is, for she has suffered it in all times and in all places. Centuries passed in bloodshed give her the right to say with a holy boldness that she does not fear it, and that as often as may be necessary she will be able to meet it. But persecution is in itself an evil, for it is injustice and prevents man from worshipping God in freedom. The Church then cannot desire it, even with a view to the good which Providence in its infinite wisdom ever draws out of it. Besides, persecution is not only evil, it is also suffering, and there we have a fresh reason why the Church, who is the best of mothers, will never seek it.

10. This persecution which she is reproached as having provoked, and which they declare they have refused, is now being actually inflicted upon her. Have they not within these last days evicted from their houses even the Bishops who are most venerable by their age and virtues, driven the seminarists from the grands and petits seminaries, and entered upon the expulsion of the cures from their presbyteries? The whole Catholic world has watched this spectacle with sadness, and has not hesitated to give the name which they deserved to such acts of violence.

11. As for the ecclesiastical property which we are accused of having abandoned, it is important to remark that this property was partly the patrimony of the poor and the patrimony, more sacred still, of the dead. It was not permissible to the Church to abandon or surrender it; she could only let it be taken from her by violence. Nobody will believe that she has deliberately abandoned, except under the pressure of the most overwhelming motives, what was confided to her keeping, and what was so necessary for the exercise of worship, for the maintenance of sacred edifices, for the instruction of her clergy, and for the support of her ministers. It was only when perfidiously placed in the position of having to choose between material ruin and consent to the violation of her constitution, which is of divine origin, that the Church refused, at the cost of poverty, to allow the work of God to be touched by her. Her property, then, has been wrested from her; it was not she that abandoned it. Consequently, to declare ecclesiastical property unclaimed on a given date unless the Church had by then created within herself a new organism; to subject this creation to conditions in rank opposition to the divine constitution of the Church, which was thus compelled to reject them; to transfer this property to third parties as if it had become "sans maitre," and finally to assert that in thus acting there was no spoliation of the Church but only a disposal of the property abandoned by her - this is not merely argument of transparent sophistry but adding insult to the most cruel spoliation. This spoliation is undeniable in spite of vain attempts at palliating it by declaring that no moral person existed to whom the property might be handed over; for the state has power to confer civil personality on whomsoever the public good demands that it should be granted to, establishments that are Catholic as well as others. In any case it would have been easy for the state not to have subjected the formation of associations cultuelles to conditions in direct opposition to the divine constitution of the Church which they were supposed to serve.

12. And yet that is precisely what was done in the matter of the associations cultuelles . They were organized under the law in such a way that its dispositions on this subject ran directly counter to those rights which, derived from her constitution, are essential to the Church, notably as affecting the ecclesiastical hierarchy, the inviolable base given to His work by the Divine Master himself. Moreover, the law conferred on these associations powers which are the exclusive prerogative of ecclesiastical authority both in the matter of the exercise of worship and of the proprietorship and administration of property. And lastly, not only are these associations withdrawn from ecclesiastical jurisdiction but they are made judicially answerable to the civil authority. These are the reasons which have driven Us in Our previous Encyclicals to condemn these associations cultuelles in spite of the heavy sacrifices which such condemnation involved.

13. We have also been accused of prejudice and inconsistency. It has been said that We had refused to approve in France what We had approved in Germany. But this charge is equally lacking in foundation and justice. For although the German law was blameable on many points, and has been merely tolerated in order to avoid greater evils, the cases were quite different, for that law contained an express recognition of the Catholic hierarchy, which the French law does not do.

14. As regards the annual declaration demanded for the exercise of worship, it did not offer the full legal security which one had a right to desire. Nevertheless - though in principle gatherings of the faithful in church have none of the constituent elements proper to public meetings, and it would, in fact, be odious to attempt to assimilate them - the Church could, in order to avoid greater evils, have brought herself to tolerate this declaration. But by providing that the "cure or officiating priest would no longer," in his church, "be anything more than an occupier without any judicial title or power to perform any acts of administration," there has been imposed on ministers of religion in the very exercise of their ministry a situation so humiliating and vague that, under such conditions, it was impossible to accept the declaration. There remains for consideration the law recently voted by the two Chambers.

15. From the point of view of ecclesiastical property, this law is a law of spoliation and confiscation, and it has completed the stripping of the Church. Although her Divine Founder was born poor in a manger, and died poor on the Cross, although she herself has known poverty from her cradle, the property that came to her was nonetheless hers, and no one had the right to deprive her of it. Her ownership, indisputable from every point of view, had been, moreover, officially sanctioned by the state, which could not consequently violate it. From the point of view of the exercise of worship, this law has organized anarchy; it is the consecration of uncertainty and caprice. Uncertainty whether places of worship, always liable to be diverted from their purpose, are meanwhile to be placed, or not placed, at the disposition of the clergy and faithful; uncertainty whether they shall be reserved from them or not, and for how long; whilst an arbitrary administrative regulates the conditions of their use, which is rendered eminently precarious. Public worship will be in as many diverse situations as the other. On the other hand, there is an obligation to meet all sorts of heavy charges, whilst at the same time there are draconian restrictions upon the resources by which they are to be met. Thus, though but of yesterday, this law has already evoked manifold and severe criticisms from men belonging indiscriminately to all political parties and all shades of religious belief. These criticisms alone are sufficient judgment of the law.

16. It is easy to see, Venerable Brethren and beloved sons, from what We have just recalled to you, that this law is an aggravation of the Law of Separation, and we can not therefore do otherwise than condemn it.

17. The vague and ambiguous wording of some of its articles places the end pursued by our enemies in a new light. Their object is, as we have already pointed out, the destruction of the Church and the dechristianization of France, but without people's attending to it or even noticing it. If their enterprise had been really popular, as they pretend it to be, they would not have hesitated to pursue it with visor raised and to take the whole responsibility. But instead of assuming that responsibility, they try to clear themselves of it and deny it, and in order to succeed the better, fling it upon the Church their victim. This is the most striking of all the proofs that their evil work does not respond to the wishes of the country.

18. It is in vain that after driving Us to the cruel necessity of rejecting the laws that have been made - seeing the evils they have drawn down upon the country, and feeling the universal reprobation which, like a slow tide, is rising round them - they seek to lead public opinion astray and to make the responsibility for these evils fall upon Us. Their attempt will not succeed.

19. As for Ourselves, We have accomplished Our duty, as every other Roman Pontiff would have done. The high charge with which it has pleased Heaven to invest Us, in spite of Our unworthiness, as also the Christian faith itself, which you profess with Us, dictated to Us Our conduct. We could not have acted otherwise without trampling under foot Our conscience, without being false to the oath which We took on mounting the chair of Peter, and without violating the Catholic hierarchy, the foundation given to the Church by our Savior Jesus Christ.

We await, then, without fear, the verdict of history. History will tell how We, with Our eyes fixed immutably upon the defense of the higher rights of God, have neither wished to humiliate the civil power, nor to combat a form of

government, but to safeguard the inviolable work of Our Lord and Master Jesus Christ. It will say that We have defended you, Our beloved sons, with all the strength of Our great love; that what We have demanded and now demand for the Church, of which the French Church is the elder daughter and an integral part, is respect for its hierarchy and inviolability of its property and liberty; that if Our demand had been granted religious peace would not have been troubled in France, and that, the day it is listened to that peace so much desired will be restored in the country.

20. And, lastly, history will say, that if, sure beforehand of your magnanimous generosity. We have not hesitated to tell you that the hour for sacrifice had struck, it is to remind the world, in the name of the Master of all things, that men here below should feed their minds upon thoughts of a higher sort than those of the perishable contingencies of life, and that the supreme and intangible joy of the human soul on earth is that of duty supernaturally carried out, cost what it may and so God honored, served and loved, in spite of all.

21. Confident that the Immaculate Virgin, Daughter of the Father, Mother of the Word, and Spouse of the Holy Ghost, will obtain for you from the most holy and adorable Trinity better days, and as a token of the calm which We firmly hope will follow the storm, it is from the depths of Our heart that We impart Our Apostolic Blessing to you, Venerable Brethren, as well as to your clergy and the whole French people.

Given at Rome, at St. Peter's on the Feast of the Epiphany, January 6, 1907, the fourth year of Our pontificate.

PIUS X